

TERMS & CONDITIONS

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1. Introduction

Welcome to Bhisha.com, a worldwide online platform for cloud communications. We're called Bhisha for short, and we're also sometimes referred to as the Platform or the Website. Our company, Sen Rev Services Private Limited, is in charge of running things around here, and we're a legitimate business set up under the laws of our country.

Here's what you need to know about our Terms and Conditions. This is a legally binding agreement between us, Sen Rev Services Private Limited, also known as Bhisha, and you, the person or organization using our services.

When we say "us", "we", or "our", we're talking about Sen Rev Services Private Limited, or Bhisha. And when we say "you" or "your", we're referring to the person or organization accessing or using our website, Bhisha.com, or any of our products, applications, APIs, software, dashboards, communication services, or other related offerings. By using our services, you're agreeing to these Terms, so it's a good idea to read them carefully.

When you use our platform, you're agreeing to follow some rules. These rules are outlined in a few different documents: our Terms, Privacy Notice, Terms of Use, Acceptable Use Policy, and Refund Policy. We might add new policies or agreements from time to time, and by using our platform, you're saying you'll follow those too. Basically, by accessing or using any part of our platform, you're acknowledging that you've read and understood all of these documents, and you're legally bound by them. This means you're committing to follow the rules and guidelines we've set out, and we expect you to do so. If you have any questions or concerns, it's a good idea to take a closer look at these documents to make sure you understand what you're agreeing to.

If you don't accept these terms, then you need to stop using the platform right away.

2. Scope of Services

Bhisha offers a way for companies and groups to talk to their customers online. They have a system that lets them send messages through lots of different digital channels. This means businesses can reach their customers in many ways, making it easier to communicate with them.

Our services may include, without limitation:

- Bulk SMS Services
- Transactional SMS
- One-Time Password (OTP) Messaging
- Promotional Messaging
- WhatsApp Business Platform

- Rich Communication Services (RCS)
- Voice Communication Services
- Email APIs
- Email Verification
- Number Verification APIs
- Omnichannel Messaging
- REST APIs
- SMPP Connectivity
- Webhooks
- Customer Portals
- Partner & Reseller Services
- Analytics & Reporting
- Wallet & Billing Services
- Developer Tools
- AI-powered communication features
- Any current or future services introduced by Bhisha.

The availability of specific services may vary depending on the destination country, local regulations, third-party provider availability, telecom operator policies, and technical limitations.

3. Eligibility

When you use our platform, you're making a promise to us that:

- You must be at least 18 years old, or whatever age is considered legal adulthood where you live.
- You have the power to make deals that are legally binding.
- If you're acting for a company, you need to have the power to make decisions on their behalf. This means you can agree to these terms for them. When you use our platform, you must make sure you're following all the rules. This includes obeying laws, regulations, and sanctions, as well as meeting all the requirements for telecommunications.
- You are allowed to get services as long as you don't break any laws about trading, exporting, or other rules that might apply to you.

Bhisha can ask for proof of who you are or what your business is at any time. This might include things like identity checks, business checks, or other documents to make sure everything is okay before you can use the platform or keep using it.

4. Definitions

For the purposes of these Terms:

- Account means a registered Bhisha customer account.
- API refers to any application programming interface that Bhisha provides.
- Communication Services refers to all the ways Bhisha helps you stay in touch with others, like messaging, making voice calls, sending emails, verifying information, and using APIs, as well as other related services they offer.
- Customer Content refers to anything the customer gives us, like data, messages, media, text, files, templates, contact info, and other stuff they send our way.
- The platform refers to Bhisha.com and everything that comes with it, including its software, systems, applications, APIs, dashboards, and services.
- Your Wallet is like a prepaid account balance that you can use to pay for Bhisha services. It's the money you have stored in your account that you can use to buy things from Bhisha.
- A third-party provider is any company we work with to help deliver our services. This can include phone and internet providers, payment processors, cloud storage companies, technology partners, or other external service providers that we use to make our services work.

5. Acceptance of Terms

By using Bhisha, you're agreeing to our terms. We might change these terms sometimes to keep up with changes in our services, laws, security, or business. When we do, the new version will apply as soon as it's published, unless we say otherwise.

You need to check these terms regularly. If you keep using the platform after we make changes, it means you agree to the new terms.

6. Customer Account Registration

- To use some of the features or services that Bhisha offers, you need to sign up for an account. When you register, you have to give us accurate and up-to-date information about yourself, and make sure to update it whenever anything changes.
- Bhisha can check any information you give when you sign up and might ask for more documents before they activate or let you keep using your account.
- Signing up doesn't mean you're automatically in. Bhisha can decide whether to approve, reject, put on hold, or stop any registration request they want, as long as they're following the law.
- Business customers might need to give us more documents, like papers that prove their company is real, tax info, and proof of where they're located. They may also have to share details about who really owns the company and other stuff to help us follow the rules.

7. Eligibility and Customer Verification

7.1 Bhisha may perform Know Your Customer (KYC), Know Your Business (KYB), Anti-Money Laundering (AML), fraud prevention, sanctions screening, export control, or other verification procedures where required by law, payment providers, telecom operators, or internal compliance policies.

7.2 You must work with us if we ask you to verify something and give us the right documents on time.

7.3 Failure to complete required verification may result in delayed activation, restricted access, suspension, or termination of Services.

Bhisha can check things over from time to time while you're working with us.

8. Account Security

You're the only one who can keep your login details safe. This includes your password, API keys, and any other security info that lets you access your account. It's up to you to keep all this confidential.

You must tell Bhisha right away if someone gets into your account without permission, or if you think there's a problem with its security.

Bhisha shall not be liable for any loss resulting from your failure to adequately protect your credentials or devices.

Don't share your account login details with people who aren't supposed to have them. Bhisha might need extra security checks at some point, like Multi-Factor Authentication, changing passwords regularly, verifying devices, limiting access to certain IP addresses, or other safety measures.

9. Organization Accounts and Team Members

9.1 Business customers can set up organization accounts on the platform, which lets several approved users access it.

9.2 The Account Owner is responsible for managing users, permissions, and access rights.

9.3 When someone with permission does something, it's like the account owner did it themselves.

9.4 Bhisha doesn't get involved in arguments within a group about who owns an account, who gets to be in charge, or what users are allowed to do.

9.5 Customers are responsible for promptly removing access for former employees, contractors, or representatives who no longer require access.

10. API Credentials

Bhisha might give you special keys or codes to access their services. These can be things like API Keys, Access Tokens, or SMPP credentials. They could also be Webhook secrets, OAuth credentials, or other ways to prove who you are. Having these keys or codes lets you use Bhisha's services.

These credentials are private and should not be shared with anyone who is not supposed to see them. They should not be put in apps where people can easily find them, and you should not give them to people who are not allowed to have them.

It's the customer's job to keep an eye on how they're using the API and to change their credentials right away if they think someone has gotten ahold of them.

Bhisha has the right to stop or renew your credentials if they find something fishy going on or if there's a risk to security.

11. Customer Responsibilities

By using Bhisha, you agree to:

- Maintain accurate account information.
- Protect your credentials and systems.
- Follow all the rules and laws that apply, this includes regulations and what's expected in your industry.
- Obtain all legally required consents before sending communications.
- Make sure everything you send to Bhisha is legal and correct, this includes information, contacts, templates, and content.
- Promptly report security incidents or suspected unauthorized use.

Work together to meet reasonable requests related to compliance, security, or audits. You acknowledge that you are solely responsible for all activities conducted through your Account, whether performed by you, your employees, contractors, agents, or any person using your credentials.

12. Account Suspension and Restrictions

Bhisha may temporarily restrict or suspend an Account where reasonably necessary to:

- Safeguard the platform to prevent any harm or damage, making sure it's secure and works properly.
- Investigate suspected fraud or abuse.
- Comply with legal, regulatory, telecom operator, payment provider, or governmental requirements.
- Prevent unauthorized access or misuse.
- We need to take care of real security problems or risks that could affect how we work.

- Deal with payments that are late or when someone doesn't follow the rules we set out.

When we can, Bhisha will let the customer know if their service is being suspended and what they need to do to get it back on.

13. Platform Services

Bhisha.com is a website that offers a special kind of service called Communications Platform as a Service. This service is like a cloud-based system that lets customers use different communication channels, like APIs and software applications, to help them with their business communications. The company that owns and runs this platform is called Sen Rev Services Private Limited. They make it possible for customers to access all these tools and services in one place, which can be really helpful for businesses that need to communicate with people in different ways.

Bhisha might offer services directly or they can come from other companies they work with, like phone companies, cloud storage providers, tech partners, payment processors, or other service providers. Some services might have extra rules or requirements that are specific to that product, or they might be regulated by the industry or other companies involved. We're always working to make our platform better at Bhisha. This means we can add, change, or stop any of our services or features at any time. If we make a big change that will affect our customers, we'll try to let them know ahead of time when we can.

14. Communication Services

Subject to these Terms, Bhisha may provide one or more of the following Services:

- Transactional SMS
- Promotional SMS
- OTP and Verification Messaging
- Two-Way Messaging
- WhatsApp Business Platform
- Rich Communication Services (RCS)
- Voice Services
- Email APIs
- Email Verification
- Number Verification APIs
- Omnichannel Messaging
- SMPP Connectivity
- HTTP/REST APIs
- Webhooks
- Analytics and Reporting
- Communication Automation
- AI-assisted communication features
- Partner and Reseller Services
- Developer Tools

- Billing and Wallet Services
- Any new products or services that Bhisha might offer in the future.

The availability of Services may vary by country, destination network, telecom operator, regulatory requirements, supplier availability, technical limitations, or commercial agreements.

15. Third-Party Networks and Providers

15.1 Bhisha needs help from a lot of other companies to make its services work. These companies include independent telecom operators, mobile network operators, cloud infrastructure providers, payment processors, Meta Platforms, email providers, technology partners, and other third-party service providers. They all play a role in delivering certain services to Bhisha's users. Without these companies, Bhisha wouldn't be able to offer all of its services. It relies on them to make sure everything runs smoothly.

15.2 Bhisha doesn't have control over these outside networks, so they can't promise that their services will always be available or work perfectly when they're provided through other companies. This means there might be times when things don't go as planned, like when services are interrupted, or messages aren't delivered as expected. Bhisha can't guarantee how these third-party services will perform, because they're not in charge of them.

15.3 Customers acknowledge that third-party providers may change their pricing, technical requirements, routing policies, security requirements, acceptable use standards, delivery mechanisms, or operational procedures without prior notice to Bhisha.

16. Service Availability

16.1 Bhisha will try its best to keep the platform up and running smoothly, but it can't promise that it will always be available without any interruptions.

16.2 Service interruptions may occur due to:

- Scheduled maintenance;
- Emergency maintenance;
- Software updates;
- Security incidents;
- Internet failures;
- Telecom operator outages;
- Cloud infrastructure failures;
- Third-party service interruptions;
- Government actions;
- Natural disasters or other Force Majeure events.

Bhisha won't be held responsible if their services are interrupted or delayed for a short time because of certain events.

17. Country-Specific Availability

Communication regulations differ across jurisdictions. Certain Services, sender identities, message types, templates, or communication channels may be unavailable, restricted, or require prior registration depending on the destination country.

It's the customer's job to make sure they're using our services in a way that meets all the laws and rules in every country where they do business or send messages. This includes following all the right regulations for telecommunications, getting the necessary licenses, and meeting industry standards. Customers must also get the required consent from people before sending them communications. They have to do all this on their own, as we won't be responsible for making sure they're complying with these rules.

Bhisha might decide not to offer its services, or it could stop, change, or limit them in certain areas. This would happen if the law, regulatory authorities, telecom operators, payment providers, or contractual obligations in those areas require it.

18. Service Modifications and Product Updates

18.1 Bhisha may periodically release new features, APIs, security updates, interface improvements, software versions, integrations, or additional communication channels. Unless we say otherwise, any changes we make will automatically be part of our services and will follow these rules.

18.2 When customers keep using our updated services, they might need to make some changes to their software, APIs, or configurations, or even move to newer versions. We'll try to give them fair warning if we're making big changes or need them to migrate to something new, as long as it's possible for us to do so.

19. Beta, Preview, and Early Access Services

19.1 Sometimes, Bhisha might offer new features that aren't fully ready yet, like beta, preview, trial, or early access versions, so people can try them out and see what they think. These services might not be fully developed or they could be still in the testing phase, and they may change at any time. We provide them as they are, without any guarantees, and they're available only when they're available.

19.2 Bhisha can change or stop beta or preview services at any time, and they won't be held responsible for doing so.

19.3 Customers use beta or preview Services at their own risk and acknowledge that such Services may not meet production-grade performance or availability standards.

20. Customer Responsibilities

20.1 When you have an account with us, you're in charge of everything that happens with it. This means you're responsible for what your employees, contractors, or anyone else does when they use your account. If someone uses your login details, you're still the one who has to answer for what they do.

20.2 Customers shall use the Platform only for lawful business purposes and in accordance with these Terms, applicable laws, telecommunications regulations, industry standards, and any product-specific requirements published by Bhisha.

20.3 Customers agree to maintain accurate account information and promptly update any changes to contact details, billing information, business information, or authorized users.

20.4 Customers are responsible for obtaining and maintaining all licenses, approvals, registrations, permissions, and consents necessary for their use of the Services.

Customers are expected to work with Bhisha when they need to check if everything is okay with how things are being done, look into possible fraud, deal with security issues, answer questions from regulators, or meet legal requirements. This means customers should be helpful and respond to reasonable requests from Bhisha in these situations.

21. Customer Content

When you use our platform, you still own everything you upload or create. This includes things like messages, templates, files, media, contact lists, data, and any other materials you submit ("Customer Content").

Customers promise that they have all the necessary permissions and rights to send, process, and share their content through our platform. They guarantee that they are legally allowed to do so. This means they have all the required licenses and authority to submit and distribute their content.

It's the customer's job to make sure the information they provide is lawful, correct, and trustworthy. This includes being responsible for the quality and accuracy of any content they share.

Bhisha doesn't usually keep an eye on what customers are sharing, but it can look into and remove or limit certain content if it needs to follow the law, meet regulatory requirements, or comply with court orders and its own terms. This means Bhisha has the right to step in and take action when necessary, while also giving customers the freedom to share what they want, most of the time.

22. Consent and Communication Requirements

22.1 Customers are responsible for obtaining all legally required permissions, consents, subscriptions, registrations, and authorizations before sending communications through the Platform.

22.2 Customers need to keep proper records that show they have given their consent, but only when the law says they have to.

22.3 Customers must honor unsubscribe requests, opt-out instructions, and similar communication preferences without unreasonable delay and in accordance with applicable legal requirements.

22.4 Customers acknowledge that consent requirements vary by country, industry, communication channel, and applicable law, and agree to ensure their communications remain compliant in every jurisdiction where messages are sent.

23. Acceptable Use

Customers agree not to use the Platform to:

- Send unsolicited or unlawful communications.
- Engage in spam or abusive messaging.
- Distribute malware, ransomware, spyware, or malicious code.
- Conduct phishing, impersonation, identity theft, or social engineering.
- Promote or facilitate fraudulent or deceptive activities.
- Don't share anything that's against the law, hurts someone's reputation, threatens or harasses people, discriminates, is obscene, or goes against what's allowed by the rules that apply.
- Interfere with the security, integrity, availability, or operation of the Platform.
- Attempt unauthorized access to any systems, networks, accounts, APIs, or data.
- Circumvent usage limits, authentication mechanisms, or security controls.
- Don't share or sell our services to others without getting permission first, if permission is needed.
- Don't do things that hurt someone else's rights, like taking their ideas or private stuff without permission.

24. Restricted and High-Risk Activities

Don't use our platform for certain activities unless Bhisha says it's okay and it's allowed by law. These activities include:

- Illegal goods or services.
- Fraudulent financial schemes.
- Money laundering.
- Terrorism or terrorist financing.
- Human trafficking or exploitation.
- Child exploitation or abuse.
- Counterfeit goods.

- Unauthorized pharmaceuticals.
- Illegal gambling.
- Sanctioned persons or entities.
- Activities prohibited under export control or sanctions laws.

Things that could get Bhisha, its partners, or customers into trouble with the law, or hurt their reputation, or cause financial problems. This includes any activity that might lead to legal issues, problems with regulations, money losses, or damage to their good name.

Bhisha has the right to decide if a certain use is too risky for the platform or its users. They will make this decision in a fair and reasonable way. If they think something is a problem, they can take action to protect the platform and the people using it.

25. International Compliance

25.1 Customers are solely responsible for ensuring that their use of the Services complies with all laws, regulations, telecommunications requirements, privacy obligations, consumer protection rules, sanctions regimes, export controls, and industry standards applicable in every country where they operate or communicate.

25.2 Bhisha may suspend, refuse, restrict, or terminate Services where continued provision would reasonably be expected to violate applicable law, contractual obligations, regulatory requirements, or governmental directives.

26. Customer Indemnification

To the fullest extent permitted by applicable law, Customers agree to defend, indemnify, and hold harmless Sen Rev Services Private Limited, its affiliates, directors, officers, employees, contractors, licensors, suppliers, and partners from and against any claims, liabilities, damages, losses, penalties, fines, judgments, settlements, costs, and reasonable legal fees arising out of or relating to:

- Customer Content;
- the Customer's use of the Platform;
- violation of these Terms;
- infringement of third-party rights;
- failure to obtain required consents;
- violation of applicable laws or regulations; or
- negligent, fraudulent, or unlawful acts or omissions by the Customer or its authorized users.

Commercial Terms, Pricing & Billing

27. Pricing

27.1 Prices for our services are listed on Bhisha.com. You can also find them in individual quotes, partner agreements, and enterprise contracts. Some customers even have their own special pricing plans.

27.2 Prices may differ based on destination country, telecom operator, message type, communication channel, supplier costs, taxes, regulatory fees, traffic classification, committed volume, customer category, or commercial agreements.

Bhisha can change its prices whenever it wants. When prices are updated, the new prices will start being used from the date they are announced on the platform, customer dashboard, API, in a quote, contract, or through some other reasonable notification.

Big companies that have a special contract with us will still follow the pricing rules they agreed to until they decide to change them together or the contract runs out.

28. Wallet and Prepaid Credits

Customers can buy prepaid wallet credits using payment methods that have been approved. You can only use the money in your Bhisha wallet to buy services that are offered by Bhisha.

Your wallet balance isn't actually worth anything in terms of cash, unless the law in your area says it has to be.

Bhisha reserves the right to reject, reverse, suspend, or investigate wallet transactions where fraud, payment disputes, compliance concerns, or technical errors are reasonably suspected.

Customers are responsible for maintaining sufficient wallet balances before initiating communication campaigns.

29. Billing

29.1 Customers agree to pay all applicable fees associated with their use of the Services.

29.2 Charges may include, without limitation:

- Communication charges
- Platform usage
- Subscription fees
- API usage
- Verification services
- Number rental
- Setup fees
- Regulatory charges
- Third-party provider charges
- Taxes
- Other applicable service fees

Charges are figured out based on how much you use our services, and we keep track of that. Unless we've made some other arrangement in writing, this is how we calculate what you owe us.

30. Taxes

When you use our services, you're responsible for paying any taxes or charges that apply. This includes things like VAT, GST, and other government fees. However, we'll take care of paying taxes on our own income - you don't need to worry about those. Essentially, you're on the hook for any taxes related to your use of our services, but we've got our own taxes covered.

31. Invoices

Bhisha may issue electronic invoices, receipts, account statements, wallet transaction records, and billing summaries through the customer dashboard, email, API, or other electronic means.

Customers are responsible for reviewing invoices promptly and notifying Bhisha of any billing discrepancies within thirty (30) days of invoice issuance.

32. Payment Failures

Bhisha may suspend or restrict Services where payments fail, payment methods are declined, chargebacks occur, invoices remain overdue, or fraudulent payment activity is suspected.

Refunds, Chargebacks & Collections

33. Refunds

Refund eligibility is covered by the rules outlined in the Bhisha Refund Policy, which can be found on Bhisha.com - this policy is a key part of our overall terms.

When you pay for digital communication services, you usually can't get a refund once the services are up and running or have been used. This is the case unless it's clearly stated otherwise.

34. Chargebacks

Customers agree to contact Bhisha before initiating any payment dispute or chargeback through a financial institution or payment provider.

Where a chargeback is initiated, Bhisha may:

- Temporarily suspend the Account;
- Recover outstanding amounts;
- Provide supporting records to payment providers;
- Restrict future payment methods;
- Recover reasonable costs associated with defending the chargeback where permitted by law.

35. Credit Limits

Bhisha may, at its sole discretion, offer postpaid billing, credit facilities, or payment terms to selected Customers subject to credit evaluation.

Your credit limit can change at any time - it might go up, down, or even be stopped altogether.

36. Collections

If any amount remains unpaid beyond the applicable due date, Bhisha reserves the right to:

- Suspend Services;
- Terminate Accounts;
- Offset available wallet balances;
- Engage third-party collection agencies where legally permitted;
- Recover reasonable legal costs, collection expenses, and accrued interest where permitted by applicable law.

37. Currency

Payments may be accepted in one or more currencies supported by Bhisha.

When it comes to converting money, the exchange rates used will be the ones set by Bhisha, the companies that handle payments, or banks.

Customers are responsible for any bank charges, currency conversion fees, intermediary fees, or international transfer costs.

38. Billing Records

Bhisha maintains electronic usage logs, transaction records, API logs, wallet records, payment records, and communication logs for billing and audit purposes.

We will assume Bhisha's records are correct when it comes to figuring out how much service was used and how much is owed, unless there's clear proof that says otherwise.

Intellectual Property, Software & Licenses

39. Ownership of the Platform

39.1 Bhisha.com is owned by Sen Rev Services Private Limited, and this includes everything from its software and APIs to its trademarks and logos. All of these things are protected by laws that apply to intellectual property, as well as international treaties. This means that Bhisha.com's intellectual property rights are safeguarded, covering its dashboards, source code, object code, documentation, user interfaces, workflows, databases, graphics, designs, and content.

39.2 Except for the limited rights expressly granted under these Terms, no ownership or intellectual property rights are transferred to the Customer.

39.3 Customers shall not remove, alter, obscure, or modify any copyright, trademark, proprietary notices, or other legal notices appearing on the Platform or associated materials.

40. Limited License

Subject to compliance with these Terms and payment of all applicable fees, Bhisha grants Customers a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to access and use the Platform solely for their internal business purposes.

This license does not permit Customers to:

- Copy or reproduce the Platform.
- Modify, adapt, translate, or create derivative works.
- Reverse engineer, decompile, or disassemble any software except where expressly permitted by applicable law.
- Rent, lease, sublicense, or commercially exploit the Platform.
- Don't use Bhisha's proprietary software, documentation, or APIs to create or help build services that compete with them.

41. API License

Bhisha may provide APIs, SDKs, sample code, documentation, developer tools, and technical resources.

Users can only use these resources to work with Bhisha Services, and they have to follow the rules outlined in the documentation that's available to everyone.

Customers shall not:

- Misuse APIs.
- Circumvent rate limits or authentication.
- Attempt unauthorized access.
- Interfere with Platform operations.
- Use APIs for unlawful purposes.

Bhisha can change, stop, or limit any version of the API after giving fair warning when possible.

42. Open Source Software

Some parts of the platform use open-source software that other companies have licensed. These parts are still covered by their own open-source licenses, and nothing in these rules can take away the rights given by those licenses.

43. Customer Intellectual Property

Customers retain ownership of their trademarks, logos, branding, software, content, templates, messages, databases, customer information, and other intellectual property submitted to the Platform.

When you use Bhisha, you're giving them permission to use the things you upload or share. This means they can store it, copy it, and send it to others as needed to make their services work properly. They can also use it to follow the law, keep everything secure, fix problems, and make their services better. This permission is worldwide and doesn't cost them anything. They can do all this as long as it's necessary for providing their services.

44. Feedback

If users give us ideas or suggestions about how to make the platform better, we can use them however we want without having to ask for permission or give them credit. This includes things like new features, comments, or other feedback. We can modify, publish, or even sell these ideas without paying the user anything, unless we've agreed to something different in writing.

Confidentiality, Data Ownership & Brand Usage

45. Confidential Information

When working together on the Services, each side might share private or exclusive information with the other.

Confidential Information includes, but is not limited to:

- Business strategies.
- Technical documentation.
- Pricing information.
- Security procedures.
- API credentials.
- Software architecture.
- Customer information.
- Commercial agreements.
- Financial information.
- Product roadmaps.
- Non-public operational information. Confidential Information does not include information that:
 - It's available to the public and that's not because the person getting it did anything wrong.
 - Was lawfully known prior to disclosure;
 - It's created on its own, without using any of the information that's already been shared.
 - Information has to be shared if the law or a court says so.

46. Confidentiality Obligations

Each party agrees to:

- Protect Confidential Information using reasonable security measures.
- Only use private information for things that have to do with this agreement.
- Only share information with people who really need it for work, like employees, contractors, or advisors, and make sure they've agreed to keep it secret.

Let the person who shared the information know right away if it gets out without permission, as long as it's allowed by law.

These obligations survive termination of the Agreement.

47. Data Ownership

When you use our platform, you still own all the information you share with us. Bhisha does not claim ownership of Customer Data.

Bhisha may process Customer Data only:

- To provide requested Services.
- To comply with applicable law.
- To maintain Platform security.
- To investigate fraud or abuse.
- We use this information to make our services better, as explained in our Privacy Notice.

48. Brand Usage

You can't use Bhisha's name, trademarks, logos, or other branding without their okay in writing first. This includes things like product names, domain names, and marketing materials - basically, anything that's considered their intellectual property. They need to give you permission before you can use any of it.

Bhisha can mention its customers as users of the platform when marketing or giving references, but only if they have gotten permission in writing first. This is unless they have made some other agreement in writing.

49. Publicity

Before sharing any news about their business deal, both sides must get permission from each other in writing. However, if the law or stock exchange rules require it, they can make an announcement without getting permission first. This is to ensure that both parties are on the same page and that no one shares any information that the other side might not want to be made public.

50. Reservation of Rights

Any rights that aren't clearly given to you in these Terms are kept by Sen Rev Services Private Limited.

Using the platform or its services doesn't mean you're getting any rights to the intellectual property. The owners still have complete control over it.

Service Availability, Maintenance & Force Majeure

51. Service Availability

Bhisha will try its best to keep the Platform running smoothly and securely. But, the Services are available as they are, and when they are, unless we've made a special agreement in writing that says otherwise.

Bhisha can't promise that the Platform, APIs, dashboards, and communication services will always work without interruptions, errors, or stopping completely.

Customers should know that how well our service works can be different depending on where they are, who their phone company is, what cloud they use, how good their internet is, what rules their government has, and if other platforms are working.

52. Planned Maintenance

52.1 Bhisha may perform scheduled maintenance, upgrades, security patches, database optimization, infrastructure improvements, or feature deployments.

When possible, we'll give you a heads up about what's coming. You might see a note on your customer dashboard, get an email, or check our status page for updates. We'll use the best way to reach you, so you're always in the loop.

Maintenance that's planned ahead of time won't be seen as a violation of our agreement.

53. Emergency Maintenance

Bhisha may immediately suspend or limit access to any part of the Platform without prior notice where necessary to:

- Protect customer data;
- Respond to cybersecurity threats;
- Prevent fraud or abuse;
- Maintain platform stability;
- Comply with legal or regulatory obligations; or
- Address critical operational issues.

54. Third-Party Dependencies

Customers acknowledge that certain Services rely upon third-party infrastructure and service providers, including but not limited to:

- Mobile Network Operators (MNOs);
- Telecom carriers;
- Cloud infrastructure providers;
- Internet service providers;

- Payment gateways;
- Meta Platforms;
- Email service providers;
- Domain name systems; and
- Other technology partners.

We're not liable for any issues that come up with outside services we work with. This includes things like service interruptions, delays, changes to prices or policies, or any restrictions they might put in place.

55. Force Majeure

Neither party shall be liable for delays or failures in performance caused by events beyond its reasonable control, including but not limited to:

- Natural disasters;
- Floods, fires, earthquakes, epidemics, pandemics, or public health emergencies;
- War, terrorism, civil unrest, riots, or armed conflict;
- Government actions, sanctions, embargoes, or regulatory restrictions;
- Internet outages;
- Telecom failures;
- Power failures;
- Cyberattacks;
- Labor disputes;
- Supply chain disruptions; or
- Any other event beyond reasonable control.

The affected party shall use commercially reasonable efforts to resume performance as soon as reasonably practicable.

Warranties, Disclaimers & Limitation of Liability

56. Warranty Disclaimer

The platform and services are given to you just as they are, with no promises that they will work perfectly or meet your needs, unless we've made a specific agreement with you in writing.

To the fullest extent permitted by applicable law, Sen Rev Services Private Limited disclaims all express, implied, statutory, or other warranties, including warranties of merchantability, fitness for a particular purpose, title, non-infringement, uninterrupted availability, or error-free operation.

Bhisha does not warrant that:

- Messages will always be delivered;
- Delivery will occur within a specified time;
- Third-party networks will remain available;

- Services will be uninterrupted or error-free; or
- The Platform will meet every Customer requirement.

57. Customer Acknowledgement

Customers acknowledge that communication services depend upon numerous external factors beyond Bhisha's control, including recipient devices, telecom operators, internet connectivity, government regulations, third-party platforms, spam filtering systems, and customer configurations.

So, Bhisha can't promise that messages will be delivered, or that people will read them, or even respond. They also can't guarantee any specific business results.

58. Limitation of Liability

We're not responsible for any indirect damages that might happen when you use our platform. This includes things like losing profits, business opportunities, or customers. Our company, Sen Rev Services Private Limited, and its affiliates, directors, officers, employees, contractors, licensors, suppliers, and partners won't be held liable for these kinds of damages. This is to the maximum extent allowed by law. We're also not liable for any incidental, consequential, special, or punitive damages that might arise from using our platform. This includes losing data, revenue, or goodwill. We want to make it clear that we're protected from these kinds of damages, and we hope you understand.

If we can't avoid being held responsible by law, Bhisha's total responsibility for anything going wrong will be limited to the amount the customer paid for the specific service that caused the problem, over the three months before it happened. This is unless the law says otherwise or we've agreed differently in writing.

59. Business Continuity

Bhisha does its best to keep its services running smoothly. We have plans in place to back up our systems, watch for problems, and recover from disasters. But even with these plans, things can still go wrong. Our customers understand that no technology can work perfectly all the time.

60. No Guarantee of Commercial Results

Bhisha offers the technology and communication tools you need. But we can't promise that using our services will lead to more sales, customers interacting with you, successful marketing, getting approved by regulators, or messages being delivered at a certain rate. We also can't guarantee any specific business outcome.

We're getting close to wrapping up the Terms and Conditions, thanks for sticking with me.

Suspension, Termination & Account Closure

61. Suspension of Services

61.1 Bhisha may immediately suspend, restrict, or limit access to all or part of the Services where reasonably necessary to:

- Safeguard the Platform's safety, make sure it works properly, and keep it running smoothly.
- Prevent fraud, abuse, spam, phishing, malware, or other unlawful activity.
- Comply with applicable laws, court orders, regulatory directives, telecom operator requirements, sanctions, or payment provider obligations.
- Investigate suspected violations of these Terms.
- Address overdue payments, chargebacks, or payment disputes.
- Respond to cybersecurity incidents or operational emergencies.

When possible and allowed by law, Bhisha will make a reasonable effort to inform the Customer about the suspension and, if necessary, explain the steps needed to restore the service.

62. Customer-Initiated Termination

You can close your account anytime you want, either through our platform or by getting in touch with Bhisha Support.

If you stop using your account, you still have to pay for anything you owed before it was closed. You're also still responsible for any promises or agreements you made before the account was terminated.

Any fees you've already paid are still covered by our refund policy, which is outlined in the Bhisha Refund Policy.

63. Termination by Bhisha

Bhisha may suspend or terminate any Account immediately where:

- These Terms are materially breached;
- Fraud or illegal activity is reasonably suspected;
- Required verification is not completed;
- Outstanding payments remain unpaid after reasonable notice;
- Continued provision of Services may expose Bhisha or its partners to legal, regulatory, financial, operational, or reputational risk;
- Needed by law, a court, a regulator, a phone company, a payment provider, or some other authority that has the power to make demands.

If Bhisha's contract is ended under this section, it won't affect any other rights or options they have to take action. They can still pursue other remedies available to them.

64. Effect of Termination

Upon termination:

- Access to the Platform may be disabled.
- Access to API Keys, SMPP credentials, tokens, and user accounts can be taken away.
- Pending services may be cancelled.
- Outstanding invoices become immediately payable.
- Wallet balances and refunds shall be handled in accordance with the Refund Policy and applicable law.
- Some customer information might be kept when the law requires it or for valid business reasons.

65. Data Retention

After something is ended, Bhisha can keep some information, like customer data, billing records, and logs of conversations and audits, for as long as they need to according to certain rules.

- Applicable law;
- Regulatory obligations;
- Fraud prevention;
- Security investigations;
- Accounting and tax requirements;
- Legitimate business interests.

When the time is right, we get rid of data in a safe way or make it anonymous, following our Privacy Notice and the law.

Governing Law, Dispute Resolution & General Provisions

66. Governing Law

These terms will be interpreted according to the laws that apply to Sen Rev Services Private Limited, except when the laws in the customer's area say something different and must be followed instead.

These terms don't affect any rights you have as a consumer that can't be taken away by law.

67. Dispute Resolution

The parties agree to first attempt to resolve any dispute, claim, or controversy through good-faith negotiations.

If an issue can't be worked out in a friendly way within a fair amount of time, either side can look into the options available to them under the law or as outlined in any other written agreement they may have. This means that if talking it out doesn't lead to a resolution, they can seek help from the legal system or follow the procedures set out in their separate agreement.

Where permitted by law, the parties may mutually agree to resolve disputes through arbitration or another alternative dispute resolution mechanism.

68. Notices

Bhisha might send you important messages about legal stuff, how they're running things, changes to their rules, bills, and other things you should know. They can do this through:

- The Customer Dashboard;
- Registered email address;
- Website notifications;
- API notifications (where applicable); or
- Other reasonable electronic communication methods.

Customers are responsible for maintaining accurate contact information.

69. Assignment

You can't pass on any of your rights or responsibilities under these Terms to someone else without first getting our permission in writing.

Bhisha can give its rights and duties to a related company, a successor, or as part of a big change, like when one company buys another, a company is reorganized, or some of its assets are sold.

70. Entire Agreement

When you use our services, you're agreeing to these terms and a few other important documents. These include our Privacy Notice, Terms of Use, Refund Policy, and Acceptable Use Policy. We also have some product-specific terms and order forms that you should know about. All of these together make up the complete agreement between us about our services. They replace any earlier discussions or agreements we might have had about the same thing.

71. Amendments

Bhisha can change these rules whenever they need to, because of things like new laws, advances in technology, better security measures, changes in how the company runs, or updates to the services they offer.

We'll post updates on Bhisha.com and they'll take effect as stated in the new version.

If you keep using the Platform after the effective date, it means you agree to the new Terms.

72. Severability

If a part of these rules is found to be invalid or can't be enforced, the rest of the rules will still apply and be followed as much as the law allows.

73. Waiver

If Bhisha doesn't enforce a particular part of these Terms, it doesn't mean they're giving up on that part or any other right they have. They can still decide to enforce it later if they want to.

74. Survival

Some parts of these Terms will still apply even after they end or expire.

- Payment obligations;
- Intellectual Property Rights;
- Confidentiality;
- Data Retention;
- Indemnification;
- Limitation of Liability;
- Governing Law;
- Dispute Resolution; and
- Any provisions intended by their nature to survive termination.

Compliance, Sanctions & Regulatory Requirements

75. Legal and Regulatory Compliance

When using our services, customers must follow all the rules and laws that apply to them. This includes laws about telecommunications, privacy, protecting consumers, and stopping spam. They also have to meet any licensing requirements and other regulations that apply to their business, no matter where they are operating or communicating from.

76. Export Controls and Sanctions

When you use our Services, you're promising that you're not breaking any rules. Specifically, you're saying that you're not affected by any trade sanctions or export restrictions that would stop you from using our Services. In other words, you're confirming that you're allowed to use our Services without violating any laws or regulations.

When using our platform, you must follow the rules. You can't use it in a way that breaks export control or sanctions laws. This means you can't provide services to people, companies, or countries that are not allowed to receive them. It's your job to make sure you're not doing anything illegal.

Bhisha may suspend or terminate Services where reasonably necessary to comply with applicable sanctions or export control requirements.

77. Anti-Bribery and Anti-Corruption

Customers agree to comply with all applicable anti-bribery and anti-corruption laws.

When using our platform, users must not try to bribe others or take part in corrupt activities. This also means no making unlawful payments to politicians or giving kickbacks. We don't allow any financial practices that are against the law.

78. Anti-Money Laundering

To follow the rules, Bhisha might ask for some extra information when needed by law or their own rules. This could be things like proving who you are, where your money comes from, or papers about your business. They do this to stop money laundering, fraud, and other financial crimes.

79. Audit and Compliance Reviews

Where reasonably necessary to comply with legal, regulatory, telecom operator, payment provider, or security obligations, Bhisha may request information demonstrating compliance with these Terms.

Customers agree to cooperate with reasonable compliance requests.

80. Cooperation with Authorities

When the law says we have to, or if a court or government agency asks us to, Bhisha might share some information, keep records, stop Services for a while, or do other things to follow the rules. This is because we want to make sure we're doing what we're supposed to do, and that means cooperating with the authorities when they need something from us.

81. SMS Services

Customers are responsible for obtaining all legally required consents before sending SMS messages.

Delivery depends upon telecom operators, destination networks, recipient devices, regulatory requirements, and other factors beyond Bhisha's control.

Customers acknowledge that applicable pricing, sender ID requirements, message classifications, content restrictions, and registration requirements vary by country.

82. WhatsApp Business Platform

Using WhatsApp Business Platform Services means you have to follow these rules and any other requirements that Meta Platforms says you need to.

Customers are responsible for complying with Meta policies, template approval requirements, conversation categories, business verification requirements, and applicable laws.

Bhisha doesn't have control over the decisions made by Meta, like whether to approve an account, give a quality rating, set messaging limits, approve templates, or restrict an account. These decisions are made by Meta and Bhisha has no say in them.

83. Rich Communication Services (RCS)

RCS availability depends upon supported devices, mobile network operators, operating systems, and regional availability.

People who use our services know that some features, like how things look and how messages work, might be different depending on where they are.

84. Voice Services

Voice Services are subject to carrier availability, numbering regulations, licensing requirements, and destination-specific restrictions.

The quality of calls, how they are routed, how often they are completed, and how available they are, all rely on the infrastructure of telecom companies we work with.

85. Email and Verification Services

Email delivery, email verification, number verification, and related services depend upon internet infrastructure, recipient servers, third-party providers, and industry security practices.

Bhisha can't promise that messages will always land in the inbox, or that people will respond, or even that verification will work every time.

86. APIs and Developer Services

Customers shall use APIs only in accordance with published documentation, technical specifications, rate limits, and security requirements.

Bhisha might make changes to or stop using certain API versions, but they will try to give notice when they can.

87. Partner and Reseller Services

Our approved partners and resellers are still in charge of making sure their customers follow these rules and all the laws that apply. They have to ensure their customers are doing everything right, which is crucial for us.

Bhisha has the right to stop partner privileges if they find out someone is misusing them, being dishonest, or breaking the rules over and over.

88. Future Products

If Bhisha introduces new products, services, or technologies in the future, they will be covered by these Terms. This includes any new features, ways of communicating, AI-powered services, integrations, or technologies. The only exception is if Bhisha publishes separate terms for a specific product, in which case those terms will apply instead.

89. Electronic Communications

When you're a customer, you agree to get important messages from us online. This includes things like contracts, bills, warnings about security, updates on how things are working, and other stuff we need to tell you.

Electronic records shall satisfy any legal requirement for written communication where permitted by applicable law.

90. Relationship of the Parties

These terms don't mean we're partners or working together as a team. We're not employer and employee, and we're not connected in any other official way. We're just two separate parties agreeing to something.

Each party acts as an independent contractor.

91. No Third-Party Beneficiaries

These terms don't give anyone else the right to enforce them, unless we specifically say so.

92. Language

These terms are written in English, and if we provide translations to help, the English version is what matters most if there's a disagreement, as long as that's allowed by the laws that apply.

93. Headings

These terms are set up so that section headings are just for organization and don't change what anything means.

94. Contact Information

For legal notices or questions relating to these Terms:

Legal Entity: Sen Rev Services Private Limited

Brand: **Bhisha**

Website: [Bhisha.com](https://bhisha.com)

Email: legal@bhisha.com (or another designated legal contact)

Support: support@bhisha.com

You can also find more contact details on Bhisha.com, which we update every now and then.

95. Acceptance

When you use any of Bhisha's services, you're saying you've read and understood the rules. These rules are called Terms & Conditions, and they include other policies that are connected to them. By using the services, you're agreeing to follow these rules, and you're doing so legally. This means you're bound by them, whether you're just accessing the services, signing up, buying something, or actually using something.

If you don't agree with our terms, you should stop using our platform and services right away.